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File No.: EXP202303139

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 28/01/2023, a complaint was filed with entry registration number REGAGE23e00005713112 before the Spanish Agency for Data Protection against SPOCK P2P, S.L. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows: the responsible party of the website spock.es promotes collective purchases of electricity; for this purpose, personal data of consumers interested in participating in a collective purchasing process managed by the responsible party is collected; among the requested data is a copy of the ID of the holder of the supply point.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on 26/04/2024, the aforementioned complaint was forwarded to the complained party/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 07/05/2024, as stated in the certificate in the file.

THIRD: On 28/04/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

- On 21/06/2023, access was made to the link provided by the complainant https://app.spock.es/register?invitecode=60f7a7eba0dafb286bb8d772&_adin=132415900 and it was verified that it contains a privacy policy section.

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From the analysis of the information provided in that section, it is evident that it includes data regarding:

- Identity of the Data Controller
- Purpose of the processing
- Source of the personal data
- Criteria for determining the retention period of the data
- Legitimacy for the processing
- Security Measures
- Exercise of rights

It indicates the procedure to request access, rectification, or deletion, limitation of processing, or to oppose the processing, as well as the right to data portability. It also mentions the right to withdraw consent for any of its purposes.

It also informs about the right to file a complaint with the competent control authority (Spanish Agency for Data Protection)

- In the Legal Notice section, it informs about data transfers.
- On 11/09/2023, information was requested from the complained party regarding its internet portal.
- On 26/10/2023, the registration process was simulated, verifying that it requests the following data: In a first step, it asks for a mobile phone number, an email address, and a password.

Subsequently, a code is received on the mobile and it continues to request the following personal data:

- Name
- Surname
- ID
- Supply address
- CUPS code

It was not possible to continue with the simulation since the page gives the message that the CUPS format is invalid.

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- On 18/01/2024, the respondent replies to the information request dated 11/09/2023 and states in its writing:

- That Spock.es is a platform whose mission is to provide small consumers with tools that allow them to manage and reduce their energy costs easily, transparently, and impartially.

- That the operation of collective purchases is fully detailed in the section Terms and Conditions of Use; however, we highlight several points:

- The holders of the Supplies or their representatives register for the collective purchase that is currently active.
- Spock validates that the user is the holder of the supply and requests authorization to access the characteristics and technical data of their electricity consumption through the Datadis platform, of which we are part of their Partners program (see annex).
- The aggregated and anonymized data of the participants in a collective purchase is provided to the Suppliers so that they can size and make their best offer.
- The winning Supplier receives the information of the participants in order to generate the contracts and carry out the signing.

- That upon registering the user on the platform, the following information is requested:

- Email address
- and mobile phone number.

Both pieces of information are mandatory and are validated via confirmation email and confirmation SMS.

- That when registering a supply, we request the name and surname of the holder, ID number of the supply holder, address of the supply, and CUPS number of the supply, as well as the email and mobile phone number of the person who will sign the contract, along with the IBAN of the account where the charges will be domiciled. In the case of a company, we request the tax address.

We do not require a copy of the ID.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The respondent carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

It should be noted that "spock.es is a platform whose mission is to provide small consumers with tools that allow them to manage and reduce their energy costs easily, transparently, and impartially.

Currently, it conducts collective purchases of electricity and gas, that is, it facilitates its users to join together to negotiate their electricity and gas rates in an aggregated manner. By doing so in a fully automated manner, thanks to the intensive use of information technologies, significant administrative/operational savings are achieved, which benefits the user."

III

From the documentation in the file, it can be concluded that there is an absence of the subjective element of culpability necessary in the respondent's actions to exercise the sanctioning power.

The complainant states in their writing that the spock.es platform promotes collective purchases of electricity and that those interested in participating must provide their personal data; among the requested data is a copy of the ID of the holder of the supply point (CUPS), and although there is a checkbox regarding the privacy policy, it cannot be linked to it, considering that it could violate regulations on the protection of personal data.

From the documentation in the file, it must be concluded that there are not sufficient elements of judgment to proceed with the opening of a sanctioning file. Thus, contrary to what the complainant has stated, it has been verified that the link provided by them supplies information regarding security policy and legal notice.

And simulating the registration process, it has been verified that the form requests the following data: name, surname, ID (not a copy), address of the supply, CUPS code, in addition to the mobile number and email address requested prior to the data collection process. Therefore, it could not be established that the process requires a copy of the ID, as the complainant states.

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However, in the response provided on 01/18/2024 to the information request made by the acting inspector, in point 2.2 Regarding the registration of a Supply (electricity or gas) we request the following information, it is stated that "We do not require a copy of the ID," but as previously indicated, this could not be verified.

At this point, it is necessary to indicate that the Constitutional Court in its Judgment 76/1990, of April 26, regarding the right to the presumption of innocence and the principle of culpability establishes:

"There can be no doubt that the presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, whether criminal, administrative in general, or tax-related in particular, since the exercise of ius puniendi in its various manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions. In this sense, the right to the presumption of innocence entails: that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, with no one being obliged to prove their innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

The Judgment of the Constitutional Court of 02/20/1989 indicates that "Our doctrine and criminal jurisprudence have maintained that, although both can be considered manifestations of a generic favor rei, there is a substantial difference between the right to the presumption of innocence, which unfolds

its effectiveness when there is an absolute lack of evidence or when the evidence presented does not meet procedural guarantees, and the jurisprudential principle in dubio pro reo, which pertains to the moment of evaluation or assessment of evidence, and which must judge when, if that indispensable evidentiary activity occurs, there is a rational doubt about the real concurrence of the objective and subjective elements that make up the criminal type in question.”

In short, those principles prevent imputing an administrative infraction when no incriminating evidence has been obtained and accredited regarding the facts that motivate this accusation or the involvement of the alleged infringer in them, applying the principle “in dubio pro reo” in case of doubt regarding a specific and determining fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

Consequently, the filing of the present preliminary investigation proceedings is appropriate as no breach of data protection regulations has been observed, since the established facts do not evidence conduct that falls within the infractions provided for and sanctioned in the GDPR.

IV

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found that proves the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

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Thus, as it has not been possible to attribute responsibility for the processing as indicated,

By the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to SPOCK P2P, S.L. with NIF ***NIF.1 and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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